

Kunwar Pal @ Vechelal v. Madhyanchal Electricity Distribution Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 April 2024 · 2024:AHC:54959-DB · Writ-C No. 6144 of 2024
· **Petition disposed; fresh assessment strictly under the Supply Code.**

HEADNOTE

Writ against a 23 June 2021 electricity recovery notice. The licensee stated that the consumer had taken a one-time settlement of the dues, that recovery on the assessment stood withdrawn, and that a fresh order would be passed after hearing. Petition disposed with liberty to pass a fresh assessment strictly under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Kunwar Pal alias Vechelal challenged the recovery notice dated 23 June 2021 issued by Madhyanchal Electricity Distribution Corporation Ltd. for electricity dues. On 6 March 2024 the Court recorded that the demand had issued without a final assessment, connected this writ with Writ-C No. 3458 of 2024, and directed that no coercive action be taken. On 1 April 2024 the Corporation stated that he had availed a one-time settlement of the dues, that recovery on the assessment had been withdrawn, and that a fresh order would be passed after hearing him.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::16.1.4

Fresh assessment after withdrawal of recovery

HOLDING

Where the licensee states that the consumer has availed a one-time settlement of the electricity dues, that recovery pursuant to the assessment has been withdrawn, and that a fresh order will be passed after hearing him, the writ is disposed of with liberty to the licensee to pass that fresh assessment strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2-3

PRINCIPLE TAGS

fresh-assessment-under-supply-code On the licensee's statement that assessment recovery had been withdrawn and a fresh order would follow after hearing, the writ was disposed with liberty to pass the fresh assessment strictly under the U.P. Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RECOVERY NOTICE DATED 23.06.2021, AND OF ANY FRESH ASSESSMENT

Disposed on the licensee's statement that assessment recovery stood withdrawn and that a fresh order would be passed after hearing. ¶ 2-3